



MZUZU
UNIVERSITY

SEXUAL HARASSMENT POLICY



SERVICE | PERFECTION | SELF-RELIANCE

DOCUMENT SUMMARY

Policy Name	Sexual Harassment Policy
Policy No.	
Effective from	1 st May 2025
Council approval date	
Custodian	University Registrar
Responsible Office	
Implementing Office(s)	

DEFINITION OF TERMS

The following definitions apply to the Anti-Sexual Harassment Policy:

Anti-Sexual Harassment Committee

A Committee to with the mandate to receive, investigate and publish findings on complaints of sexual harassment.

Anti-Sexual Harassment Appeals Committee

A Committee with the mandate to hear appeals against the Findings of the Anti-Sexual Harassment Committee

Disciplinary Committee

A Committee with the mandate to receive Findings from the Anti-Sexual Harassment Committee, conduct hearings and take disciplinary action against perpetrators of sexual harassment.

The University

Shall mean Mzuzu University.

MZUNI

Shall mean Mzuzu University.

Vice-Chancellor

Shall mean the Vice-Chancellor of Mzuzu University appointed pursuant to Section 16 of the Act

Registrar

Shall mean the Registrar of Mzuzu University appointed pursuant to section 17 of the Act to section 16 of the Act.

Policy

Shall mean a set of decisions or courses of action deliberately taken by an organization or government concerning the methods of accomplishing some purpose or goal within a specified situation.

Complainant

Any person (male/female) who is alleging the occurrence of sexual harassment. This could be a person who is or was, subject to alleged act(s) of sexual harassment, namely the victim, or a person who lodges a complaint under this policy on behalf of a victim.

Defendant

A person who is alleged to have committed an act of sexual harassment and/or rape, regardless of gender.

Confidentiality

Respecting someone's privacy, and abstaining from sharing personal or potentially sensitive information about an individual, especially if that information has been shared in confidence.

Respondent

Any person (male/female) either a student or member of staff or service provider, duly admitted or employed by the Mzuzu University who follows the rules and regulations, can be accused of sexual harassment.

Retaliation

Refers to retaliatory acts against any member of staff or student who reports an incident of sexual harassment, or any member of staff or student who testifies, assists or participates in a proceeding, investigation or hearing related to such allegations.

Service providers

Contractors, vendors, security personnel and link experts duly recognized by the University rules and regulations.

Unwelcome Behaviour

Unwelcome does not mean "involuntary." A victim may consent or agree to certain conduct and actively participate in it even though it is offensive and objectionable. Therefore, sexual conduct is unwelcome whenever the person subjected to it considers it unwelcome. Whether the person welcomed a request for a date, a sex-oriented comment, or a joke depends on all the circumstances.

Reporting mechanism

This refers to systems that enable victims/witnesses and advocates to report crimes and violations and in this context sexual harassment incidents.

1. Introduction

Mzuzu University (MZUNI) was established by an Act of Parliament No. 12 of 1997 (Chapter 30:09) as the second public university in Malawi to offer tertiary education and to operate under the dual character of mode; face to face and Open and Distance e-Learning (ODEL). The vision of MZUNI is “to be a premier provider of tertiary education, research, and outreach in Malawi and the World.” Its mission is “To provide high-quality education, training, research, and complementary services in Malawi and the World through the pursuit of outstanding achievements in learning, discovery, and community engagement”. The motto of MZUNI is “service, perfection, and self-reliance” With this motto, the University believes in excellence, diversity, dependability, responsiveness, academic freedom, and integrity as the core values on which the University is founded.

Mzuzu University has a 2021-2030 strategic plan that drives its operations towards becoming a more credible, competitive and responsive University in the 21st century. The Strategic Plan has set out five important pillars to drive the aspirations of the University and Malawi in line with the Malawi 2063, SDGs and African Union 2063. Through Pillar 1, which is “Optimum Student Experience Governance and Management”, the University shall strive to provide a conducive learning, growth and development environment for students, staff, and volunteers, among others, free from sexual harassment.

2. Rationale

Over the past few years, Mzuzu University has been in the media for bad reasons: Sex for grades where academic members of staff were reportedly coercing students into sexual relationships in return for good grades. These scandals have put the name of the University in disrepute as well as discrediting the degrees offered even where students worked hard for them. There have also been cases of rape among students and various other sexual harassment reports which were unfortunately not well handled due to non-compliance of the complainants. To redeem its name from bad publicity, Mzuzu University instituted an Integrity Committee which receives and investigates all matters pertaining to sex for grades issues. Nonetheless, matters relating to sexual harassment need to be taken seriously to ensure that students and staff work in a safe environment as the university upholds its pillar 1 in the 2021-2030 Strategic Plan which seeks to promote optimum student experience.

According to a report by Kanyongolo (n.d) on sexual harassment in universities and workplaces in Malawi, there was a prevalence of sexual harassment against females (students and staff) by their lecturers and peers, high levels of non-reporting, lack of protection of complainants, lack of complaints procedures, lack of policies and ineffective disciplinary committees, among others.

Thus, this Anti-Sexual Harassment Policy empowers any aggrieved parties to report their grievances to authorities of their choice in order to seek justice. It defines and spells out what constitutes sexual harassment to enable the identification and reporting of sexual harassment when experienced.

3. Policy Statement

Mzuzu University is committed to providing a safe environment for all its students, staff, volunteers, contractors and all people who interact with students from any sexual-related harassment. Members of the university community have the right to be free from all forms of sexual harassment and sexual misconduct. The University seeks to eliminate any forms of sexual harassment and sexual misconduct through awareness, education and accountability. All members of the university community are expected to conduct themselves in a manner that contributes to an environment free from sexual harassment and sexual misconduct.

The University is committed to curbing sexual harassment and sexual misconduct, preventing its recurrence, eliminating any hostile environment, and remedying its discriminatory effects. The University recognises that such violation disrupts the living, learning, and working environment for students, faculty, staff, and other stakeholders. Individuals impacted by discrimination or harassment may contact the Office of the University Registrar to receive support, resources, and information even if they do not wish to proceed with the complaint.

In accordance with regulatory requirements and institutional values, this policy defines expectations for the university community and establishes mechanisms for determining when those expectations have been violated. The policy serves as a statement of commitment by Mzuzu University to uphold a sexual harassment-free environment. The policy will champion human rights and freedoms through the creation of a free environment where both males and

females will live to their full potential, and foster mutual respect, tolerance and coexistence without fear of being sexually harassed.

4. Scope

This policy applies to the whole of MZUNI and guides and regulates the structure as well as the activities aimed at building and strengthening the relations between the University Registrar and its Alumni with the view of advancing their mutual interests. The MZUNI Registrar's Office will oversee the implementation of this policy.

This policy applies to any person undertaking work, studies or duties on behalf of, or under the guidance of Mzuzu University at all its premises across the country. It also extends to all third parties who access the school campuses such as visitors, parents, community members, contractors, etc.

Sexual harassment is prohibited for both on-campus and off-campus University settings against, between or among:

- i) Students;
- ii) Academic Staff;
- iii) Administrative Staff;
- iv) Support Staff;
- v) Contractors
- vi) Partners
- vii) Visitors
- viii) Researchers
- ix) Volunteers and trainees
- x) Suppliers

5. Legal and Policy Framework

This Anti-Sexual Harassment Policy is benchmarked on various legal frameworks both local and international. It also talks to the existing policies at Mzuzu University. The legal frameworks include the Malawi Constitution, the Penal Code (2023), the Gender Equality Act of 2013, the Corrupt Practices Act (2004), and the United Nations Convention on the Elimination of All Forms of Violence Against Women (CEDAW) of 2015. Additional policies include the

Malawi National Public Sector Reform Policy of 2018, the National Education Policy (2013), the Sexual Harassment at Workplace produced by the Malawi Human Rights Commission [MHRC] (2021), and the Mzuzu University Gender Policy (2022).

6. Definition of Sexual Harassment

A person commits an act of sexual harassment if he or she engages in any form of unwanted verbal, non-verbal or physical conduct of a sexual nature in circumstances in which a reasonable person, having regard to all the circumstances, would have anticipated that the other person would be offended, humiliated or intimidated.

6.1 Examples of Sexual Harassment

Sexual harassment may comprise any or all but shall not be limited to the following:

- i. Unwelcome touching, kisses or embraces
- ii. Touching a person's clothing including lifting skirts, dresses, blouses or shirts, flicking bra or pant straps or putting hands in someone's pockets
- iii. Exposing private body parts which may imply seduction
- iv. Sexually indicative comments or jokes, foul language, obscene gestures
- v. Sexual hints such as hooting, sucking, lip-smacking
- vi. Intrusive questions or comments about a person's life or body
- vii. Requesting a person to narrate sexual history, preferences or fantasies
- viii. Persistent questions about someone's sexual life, endless offensive or obscene phone calls or letters
- ix. Needless familiarity such as deliberately brushing up against a person
- x. Ceaseless unwanted invitations to go out on dates
- xi. Requests for sex or other forms of sexual services
- xii. Feigned "accidental" brushing of sexual parts of the body
- xiii. Insults or taunts based on sex/gender
- xiv. Sexually explicit physical contact
- xv. Sending sexually explicit emails, SMS messages or posts on any social media platform
- xvi. Spreading sexual rumours about a person
- xvii. Stalking and gazing
- xviii. Persuading or forcing someone to watch or make pornographic or X-rated movies or take such pictures
- xix. Unwarranted redirection of academic or occupational discussions into sexual discussions

- xx. Observing, photographing, videotaping, audio recording or making any other visual records of sexual activity or nudity where there is a reasonable expectation of privacy without the knowledge and consent of all parties involved
- xxi. Sharing visual or auditory records of sexual activity or nudity without the knowledge and consent of all recorded parties and recipients
- xxii. Flirting with somebody or pursuing them persistently against their will
- xxiii. Using obscene comments, gestures, pranks, and jokes that degrade or offend somebody; and,
- xxiv. Soliciting sexual images, recordings pictures and other suggestive sexual contents

6.2 The following do not constitute sexual harassment:

- 5.1.1 Consensual relationship between or among people of the age of 18+ and of sound mind. Being mindful that university entry now is as early as 15 years of age, consent with minors is unlawful;
- 5.1.2 Verbal expressions or written documents that are essential and appropriately relate to the course subject matter or curriculum;
- 5.1.3 Collegial or intellectual disputes or disagreements regarding policy, practice and ideologies; and
- 5.1.4 The University's management and discipline of its employees or students for misconduct that is not within the ambit of sexual harassment is also not harassment.

6.3 Types of sexual harassment

6.3.1 Quid pro quo harassment (this for that) – This refers to a situation where employment and/or employment decisions for an employee, or the academic progress of a student are based on their (employee or student) acceptance or rejection of unwelcome sexual behaviour.

6.3.2 Hostile working or learning environment – This environment is created by unwelcome sexual behaviour or behaviour directed at an employee or student because of that employee's or student's sex that is offensive, hostile and/or intimidating and that adversely affects that employee's ability to do his or her job, or a student to learn and study effectively.

7. Consensual Sexual Relationships

A consensual relationship refers to any kind of relationship between adults, that is romantic, physically intimate, or sexual in nature, and to which the involved parties give effective consent.

Effective consent must be given (and asked for) every time and a person may withdraw effective consent at any time. Saying “yes” once or even multiple times does not mean that a person has said “yes” to other sexual acts.

In a university context, consensual and non-consensual sexual relationships may arise between:

- i. Students of the university, of the same or different gender.
- ii. An employee of the university and a student of the university, of the same or different gender
- iii. Employees of the university, of the same or different gender.
- iv. Employees/students and third parties (support service providers, vendors, consultants, clients, etc.)

7.1 Effective consent in a sexual relationship

Individuals involved in a sexual relationship should understand the following:

- i. Effective consent is informed consent, freely and actively given, with mutually understandable words or actions that indicate a willingness to participate in mutually agreed upon sexual activity.
- ii. In the absence of mutually understandable words or actions (a meeting of the minds on what is to be done, where, with whom, and in what way), it is the responsibility of the initiator or the person who wants to engage in the specific sexual activity to make sure that they have consent from their partner(s).
- iii. When a person who is the subject of unwelcomed advances has difficulties indicating to the alleged perpetrator that the conduct is unwelcome, the person may seek assistance and intervention from another person to make it clear that the conduct is unwelcome.

- iv. Consent which is obtained through the use of fraud or force whether that force is physical force, threats, blackmail, intimidation, or coercion, is ineffective consent.
- v. Effective consent may never be given by minors to legal adults, by mentally disabled persons, or physically incapacitated persons. One who is physically incapacitated as a result of alcohol or other drug consumption (voluntary and involuntary), or who is unconscious, unaware, or otherwise physically helpless, is incapable of giving consent.
- vi. Romantic and/or sexual relationships between individuals in supervisory, teaching, evaluation, advising, coaching, or counselling positions at Mzuzu University constitute a conflict of interest.

7.2 Prohibited relationships

- i. Romantic and/or sexual relationships between faculty/staff/graduate students/undergraduate students cannot continue whenever there are supervisory, teaching, evaluation, advising, coaching or counselling responsibilities for the student. Alternative academic/supervisory arrangements must be made to avoid being in a prohibited relationship. If acceptable alternative arrangements are not feasible, the relationship cannot continue.
- ii. Romantic and/or sexual relationships between supervisor and employee are prohibited. No person involved in a romantic and/or sexual relationship will have direct responsibility for evaluating the performance or for making decisions regarding the hiring, promotion, tenure, compensation, or termination of the other party to the relationship. Supervisors, including faculty supervisors, must take immediate steps to make acceptable alternative arrangements regarding their supervisory responsibility to the other party to avoid an actual or apparent conflict of interest.
- iii. Where one student is in a position of authority over another: neither student should solicit or initiate an intimate relationship with the other, and any consensual intimate relationships must be disclosed and mitigated by the Anti-Sexual Harassment Committee.

7.3 Notification and responsibilities to avoid prohibited relationships

- i) Mzuzu University staff/postgraduate students/undergraduate students must notify their supervisor (Head of Department, Dean, Deputy Vice-Chancellor) of any prohibited relationship

- ii) Information stemming from such notifications must be treated with utmost confidentiality.
- iii) Failure to disclose such prohibited relationships will warrant a disciplinary action.

8. Reporting Mechanisms

Mzuzu University recognises the importance of providing a choice of reporting mechanisms and offices to complainants of sexual harassment so that they may feel comfortable to come forward to discuss or report an incident. However, victims of sexual harassment are encouraged to report to the office of the Registrar.

Sexual harassment incidents must be reported within the shortest period, advisably within one year from the time a sexual harassment act occurred.

8.1 Whistle-blowing

Whistle-blowing refers to the act of drawing public attention or attention to an authority figure, to perceived wrong-doing, misconduct, or unethical activity within public, and private sector organisations.

To ensure the proper implementation and enforcement of this policy, Mzuzu University;

- i. Encourages members and non-members of the institution, who may or may not have direct interest or obligation to the sexual harassment incident handling to report any known incidents of the act.
- ii. Third parties are encouraged to put their names in any report made by them. However, in a situation where the whistle-blower chooses to remain anonymous, the University may exercise its discretion to follow up an anonymous report taking into account factors such as the seriousness of the issue raised: the credibility of the allegation; and the likelihood of confirming the allegation.
- iii. Whistle-blowers are encouraged to provide sufficient information that can act as a lead for an investigation as well as any contact details that can be used if further information is required in the course of the investigation.

- iv. Mzuzu University shall take all necessary steps to ensure the protection of whistle-blowers from reprisal or victimisation for their whistle-blowing role.

8.2 False reporting

- i. This refers to a report on sexual harassment, exploitation and abuse that was never attempted or occurred.
- ii. All reports will be investigated during the preliminary investigation to validate them.
- iii. Once the report of the preliminary investigation confirms false allegations disciplinary action and or criminal processing may be instituted (See Penal Code Chapter 11).

8.3 Formal reporting

- i. Sexual harassment incidents can be initially reported verbally. However, to initiate a formal process, the Complainant must submit a written complaint e.g. via email or submitted as a hard copy to the designated office.
- ii. A formal report must contain the name of the complainant, the date(s) and time(s) of the incident, the place(s) where it happened, who was involved, facts of the incidents any witnesses (if any) and the nature of the assault.
- iii. In the event that the complainant decides to withdraw their complaint(s), the University reserves the right to investigate such a case to a conclusive end.

9. Anti-Sexual Harassment Committee

The Anti-Sexual Harassment Committee shall be a neutral body whose main concern is to investigate reported sexual harassment complaints. It shall serve the interests of all parties equally and function to foster harmony and stability in the University community.

Once the committee investigates a complaint, it shall write to a report with Findings to the Vice Chancellor who shall then refer the cases to a relevant Disciplinary Committee.

The Anti-Harassment Committee shall not be an adversarial committee. It shall not serve as a court of law. Its goal shall be to contribute towards a work

environment free from prejudice or discrimination where all members are allowed to pursue their employment and studies in a safe and supportive environment without fear of interference, by word or deed, based on their gender, sexuality, physical attributes, ethnicity, religion or political affiliation.

9.1 Functions of the Committee

The Anti-Sexual Harassment Committee shall:

- i) Receive complaints
- ii) Investigate complaints
- iii) Publish findings of investigations no later than 21 days from receipt of the complaint
- iv) Make recommendations to the Vice-Chancellor

9.2 Period of Action

This refers to the time taken by the Anti Sexual Harassment Committee to come to a resolution of a case from the time it is reported to the Office of the Registrar.

- i. Once the office of the University Registrar has received a complaint, it must submit the complaint to the Anti-Harassment Committee within five (5) working days.
- ii. The Anti-Sexual Harassment Committee must commence investigations and furnish the Vice Chancellor, the Complainant and the Defendant a report on its findings within twenty-one (21) working days.

9.3 Composition of the Anti-Sexual Harassment Committee

The Vice-Chancellor shall appoint the committee which will have equal representation of male and female members. These will be members of the University Community with an upright and good reputation. These members should be vetted by the Mzuzu University Integrity Committee on their moral standing.

The membership of the Committee, to serve a three-year term, shall be constituted as follows:

- i) Two Senior Academic Members
- ii) Two representatives of non-academic staff
- iii) A representative of the Dean of Students if the accused is a student

- iv) MUSREC-Director of Gender and Students with Special Needs if the accused is a student
- v) One representative from the University Clinic
- vi) One representative of University Registrar who will serve as the secretary to the Committee

10. Disciplinary Processes and Penalties

Individuals who violate the Anti-Sexual Harassment Policy may be subject to disciplinary actions under the Mzuzu University's Regulations, Terms and Conditions of Service or the Student Information Handbook, depending on whether the one suspected to have violated is a staff member or a student. The University shall utilise the existing disciplinary structures such as the Staff Disciplinary Committee or Student Disciplinary Committee to adjudicate and determine the penalties against sexual harassment offenders.

11. Support Services to Victims of Sexual Harassment

The University shall provide a safe and healthy working environment at the workplace which shall include safety from the persons coming into contact at the workplace.

During the pendency of inquiry, on a written request made by the aggrieved party, the Student or Staff Disciplinary Committee may recommend:

- i) transfer of the aggrieved party or the respondent to any other workplace; or
- ii) grant leave to the aggrieved party; or
- iii) medical care and treatment or psycho-social support services either at the University Chaplaincy or the University Clinic.
- iv) grant such other relief to the aggrieved party as may be prescribed.
- v) alternative modes of presenting evidence to the investigative committee in special circumstances where the complainant is unable to face the respondent.
- vi) counselling and information service provision in an accessible manner as appropriate;
- vii) crisis centres, including shelters where victims can temporarily hide; and

- viii) working in partnership with the nearest police units/stations or specialized trained officers to support victims.

12. Anti-Sexual Harassment Appeals Committee

The Vice-Chancellor may appoint an ad hoc committee which shall act as a court of appeal. It shall hear appeal cases and determine them accordingly through information gathering; interviewing the parties and making recommendations to the Vice-Chancellor. This Committee shall mainly hear appeal cases from the lower committee.

12.1 Composition of the Appeals Committee

- i. A representative of the Dean/Director/ University Librarian, if a victim or accused is a member of academic staff.
- ii. University Registrar representative if the victim or accused is a member of non-academic staff.
- iii. A representative of the Dean of Students, not previously part of the lower committee, if the accused is a student.
- iv. MUSREC-Director of Gender and Students with Special Needs, not previously part of the lower committee, if the victim is a student.
- v. A representative of MUASU not previously part of the lower committee.
- vi. A representative of MUNASU not previously part of the lower committee.
- vii. Any member of staff of the University, with expert knowledge of law and human rights.

The Appeals Committee may not make decisions on behalf of a victim nor advise in a manner that might be construed as prescriptive or unduly influenced by the victim.

After the interview process by the Appeals Committee, a written report with a statement or factual findings and a determination of whether this policy has been violated shall be submitted to the Vice-Chancellor.

12.2 Grounds of appeal

Either party may appeal the findings of the Anti-Harassment Committee, on one or more of the following grounds:

- i) A procedural irregularity affected the outcome;
- ii) There is new evidence that was not reasonably available at the time of the investigations, that could have significantly affected the Findings; and
- iii) Some official, investigator, Anti-Harassment Committee member, or administrative officer, as the case may be, had a conflict of interest or bias for or against complainants or respondents generally, or against the individual Complainant or Respondent, that affected the Findings. In such instances, the officer who has a conflict of interest must recuse himself or herself.

12.3 Note that new evidence can only be tendered to the Anti-Harassment Committee, the Staff or Student Disciplinary Committee before they make a decision.

13. Confidentiality and Rights of Complainants and Respondents

The University recognizes that confidentiality is important in all harassment, exploitation and abuse cases and disciplinary inquiries hence needs to deal with all allegations seriously, sensitively and confidentially in line with section 7 (1d) (iii) of the Gender Equality Act (GEA).

While confidentiality is an obligation, in some cases, like a court order to disclose information or avoid pending harm to the complainant or respondent, is exceptional.

To ensure the confidentiality and privacy of the complainant and the respondent is respected to the extent that is reasonably possible;

- i. All member of the Anti-Sexual Harassment Committee shall sign a non-disclosure agreement (NDA), to declare that no information other than what is required will be shared with anyone inside or outside the organization.
- ii. There shall be restrictions on the flow of information on a “need-to-know” basis when information must be shared with others.
- iii. Reports required to be made public modification shall be modified to protect the identity of the complainant and the respondent
- iv. Where it is necessary to interview the complainant, respondent or witness, the investigating committee shall do this with strict confidentiality.
- v. Consequences of breach of confidentiality are stipulated (***See Penal Code Chapter 11***).

14. Rights

Ordinary rules of natural justice shall be adhered to in carrying out investigations, disciplinary hearings, etc.

15. Prohibition of Retaliatory Acts

This policy prohibits retaliatory acts against any person who reports an incident of alleged sexual harassment, assists someone with a report of sexual harassment or participates in any manner in an investigation or resolution of a sexual harassment report. Retaliation includes threats, intimidation of any kind, reprisals, exclusion and or other forms of adverse actions related to the education or employment of a student and staff respectively.

16. Sensitization of the Sexual Harassment Policy

The Anti-Sexual Harassment Committee shall sensitize staff and students about the Anti-Sexual Harassment Policy. Deliberate measures shall be put in place to ensure the sensitisation and disseminating of the ASH policy at the beginning of every semester

17. Policy Implementation and Review

The implementation of this policy shall take place at various levels and involve various interest groups within the University community. The whole University community must be adequately sensitized to the content, procedures and sanctions pertaining to this Policy as may be determined by the office of the Vice Chancellor.

The Anti Sexual Harassment Policy shall be reviewed every three (3) years or earlier, if necessary.

18. Conclusion

The Anti-Sexual Harassment Policy highlights the need for a safe environment for staff, students, and other stakeholders in the institution hence the it emphasizes on irreproachable sexual conduct of its community.

APPENDIX 1: ANTI-SEXUAL HARASSMENT COMPLAINT FORM

1. REPORTING PERSON

1.1 Name

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.....

1.2 Name of Complainant-If other than above

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Postal address:

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Phone Number(s):

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E-mail address

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2. RESPONDENT

2.1 Name of the person who harassed you

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2.2 Directorate/Faculty/ Department or Centre he or she is attached to

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.....

2.3 Position of the Respondent

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3. STATEMENT OF EVENTS PROVIDED BY COMPLAINANT OR REPORTING PERSON

3.1 Please provide a detailed account of the incident, including dates, what happened, the place(s) the incident took place and the number of times it has occurred. Please attach additional sheets if needed.

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3.2 Did anyone witness the incident(s)? If so, please list their names.

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[illegible]

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4.1 Name

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4.2 Designation

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4.3 Date and time of Complaint recording

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